STANDARD OPERATING PROCEDURE			G-1240
SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 02/10/09	DATE REVISED **09/12/11**	DATE REVIEWED 02/02/25
	APPROVED: *GREG LONDON*		
CHAPTER TITLE GENERAL	RESOURCES		
SUBJECT COURT ATTENDANCE	CROSS REFERENCE G-3200 DRESS AND ATTIRE G-1230 PERFORMANCE OF DUTIES		

I. Purpose:

The purpose of this policy is to establish the guidelines for court attendance.

II. Policy:

Court appearance notices or subpoenas shall constitute an order to report for duty. Sarpy County Sheriff's Office employees shall report for duty at the time and place required by the notice or subpoena. Reporting for duty shall mean being physically present at the assigned location before or at the prescribed time.

III. Procedure:

A. Appearance: (See G-3200 Dress And Attire)

B. Attendance: All employees shall attend court at the times required and shall be prepared to testify. This shall include reviewing all documents and evidence pertinent to the case.

1. If an employee is ordered to appear in court during his or her duty shift, it shall be the responsibility of the employee ordered to appear to notify his or her immediate supervisor of the time he or she has been ordered to appear in court.

2. If an employee is unable to report for court *on time*, he or she shall contact his or her immediate supervisor as soon as possible. The employee shall provide the immediate supervisor with an estimated time of arrival.

a) If an employee is unavailable to attend a scheduled court appearance due to a scheduling conflict (e.g. vacation, funeral leave,

illness, or other absence approved by the employee's immediate supervisor or commander) he or she shall:

b) Complete a Court Absence Affidavit as soon as possible, but prior to the scheduled court appearance.

c) The affidavit shall be signed in the presence of a Notary Public.

d) The original affidavit shall be placed into the In Box in the assembly room.

e) The Office Manager shall be responsible for keeping a copy of the affidavit on file, and forwarding the original affidavit to the Sarpy County Attorney's Office.

f) In the instance where an employee is unable to complete an affidavit prior to court, due to unforeseen circumstances (e.g. illness, injury etc.), it shall be the responsibility of the employee to contact his or her immediate supervisor. The supervisor shall be responsible for completing the Court Absence Affidavit-Supervisor Form on the employee's behalf. If the employee's immediate supervisor is unavailable, the employee shall contact the Desk Sergeant to complete the affidavit. If the Desk Sergeant is unavailable, the employee shall contact the ADC who shall complete the affidavit on the employee's behalf.

C. Administrative License Revocation (ALR) Hearing: When an employee receives a Hearing Notice for an Administrative License Revocation he or she shall make themselves available at the times required and shall be prepared to testify. This shall include reviewing all documents and evidence pertinent to the case.

1. If an employee is unavailable for an ALR Hearing due to a scheduling conflict (e.g. vacation, funeral leave, illness, or other absence approved by the employee's immediate supervisor or commander) he or she shall:

a) Complete an ALR Hearing Unavailability Form as soon as possible, but prior to the scheduled hearing.

b) Fax the completed form to the Department of Motor Vehicles.

c) Place the completed form and the fax receipt in the Office Manager's box.

d) In the instance where an employee is unable to complete an Unavailability Form prior to the hearing, due to unforeseen circumstances (e.g. illness, injury, etc.), it shall be the responsibility

of his or her immediate supervisor. The supervisor shall be responsible for completing the ALR Hearing Unavailability Form on the employee's behalf and follow steps b) and c) above.

D. Failure to Appear in Court or Failure to Make Yourself Available for an ALR Hearing: (See also G-1230 Performance of Duties)

1. Employees shall not be absent from court without proper authorization or leave documentation (i.e. Court Absence Affidavit). When an employee fails to appear for a scheduled court appearance and does not complete the appropriate documentation, the employee shall:

a) Notify his or her supervisor as soon as possible.

b) Obtain an IR and complete an information report explaining why he or she was absent from court.